

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF BENYASH AND OTHERS v. RUSSIA

(Applications nos. 2926/19 and 11 others –
see appended list)

JUDGMENT

STRASBOURG

20 July 2023

This judgment is final but it may be subject to editorial revision.



In the case of Benyash and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 29 June 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the torture or inhuman or degrading treatment (for further details see appended table). Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 3 OF THE CONVENTION

7. The applicants complained principally of the torture or inhuman or degrading treatment. They relied, expressly or in substance, on Article 3 of the Convention.

8. The Court has already examined allegations concerning police brutality against peaceful participants of the political rallies (see *Zakharov and Varzhabetyan v. Russia*, nos. 35880/14 and 75926/17, §§ 74-76, 13 October 2020, with further references, and, for a similar situation, *Monakhov and Seliverstov v. Russia* [Committee], nos. 19560/16 and 33300/16, §§ 7-9, 1 December 2022). Considering the Government's failure to discharge their burden of proof and produce evidence capable of casting doubt on the accounts of events provided by the applicants (see *Olisov and Others v. Russia*, nos. 10825/09 and 2 others, §§ 83-85, 2 May 2017, and *Ksenz and Others v. Russia*, nos. 45044/06 and 5 others, §§ 102-04, 12 December 2017), the Court considers those accounts established and finds that the police subjected the applicants to inhuman and degrading treatment.

9. In the leading cases of *Lyapin v. Russia,* no. 46956/09, §§ 128-40, 24 July 2014, and *Samesov v. Russia,* no. 57269/14, §§ 54-63, 20 November 2018, the Court has already held that the refusal of the authorities to conduct a full criminal investigation into the credible allegations of ill-treatment is an indication that the State has failed to fulfil its procedural obligation under Article 3 of the Convention. This is all the more so in the cases where the authorities have refused to either carry-out an official inquiry into the applicants' allegations or officially register the applicants' complaints (see the appended table).

10. The Court finds the complaints admissible and decides that there has been a violation of the substantive and procedural limbs of Article 3 of the Convention in respect of all the applicants.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. In applications nos. 2926/19, 23911/20, 31751/20, 40094/20, 7410/21, the applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground, also taking into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question). Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes

that they also disclose violations of the Convention in the light of its findings in *Idalov v. Russia* [GC], no. 5826/03, 22 May 2012; *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Tsvetkova and Others v. Russia,* nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018; *Karelin v. Russia*, no. 926/08, § 82, 20 September 2016; and *Zakharov and Varzhabetyan v. Russia*, nos. 35880/14 and 75926/17, §§ 77-91, 13 October 2020.

V. REMAINING COMPLAINTS

12. In addition, the applicants in applications nos. 9648/21, 31751/20 40094/20, 7410/21 and 9648/21 submitted complaints under Article 13 of the Convention. These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. They must therefore be declared admissible. Having examined all the material before it, the Court concludes that there is no need to examine them separately in the light of its findings under Article 3 of the Convention (see *Aleksandr Andreyev v. Russia*, no. 2281/06, § 71, 23 February 2016, and *Leonid Petrov v. Russia*, no. 52783/08, § 86, 11 October 2016).

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Zakharov and Varzhabetyan*, cited above, and *Navalnyy and Gunko v. Russia*, no. 75186/12, 10 November 2020), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the applications admissible;

4. *Holds* that these applications disclose a violation of the substantive and procedural limbs of Article 3 of the Convention in respect of all the

applicants related to their allegations of torture and inhuman and degrading treatment (see appended table);

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds* that it is not necessary to examine separately the applicants' complaints under Article 13 of the Convention;

7. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 July 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 3 of the Convention (torture or inhuman or degrading treatment)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	2926/19 24/12/2018	**Mikhail Mikhaylovich BENYASH** 1977	Tretyak Tatyana Aleksandrovna Gelendzhik	On 08/09/2018 the applicant, a lawyer, came to Krasnodar to represent persons arrested during protest actions. On 09/09/2018 he was apprehended in a street by officers of the Krasnodar police and taken to a police station. He was beaten during the ride and also upon arrival at the station.	Medical certificate of 09/09/2018 by the emergency unit of the Krasnodar town hospital: bruises, abrasions on a right cheekbone; bruises, abrasions on the scalp. Forensic medical examination act no. 5618/2018 of 12/10/2018 by the Krasnodar Forensic Bureau: bruises, abrasions on the right cheekbone, bruises above the right eyebrow, abrasions behind the left ear, abrasions on the elbows, bruises around left knee, all injuries could possibly have been inflicted on	On 09/09/2018 the applicant's colleague complained to the Krasnodar police alleging ill-treatment and abduction of the applicant. On 11/09/2018 the applicant's lawyer filed a complaint about the applicant's ill-treatment with the Krasnodar Investigative Committee; between 11/10/2018 and 28/01/2019 four refusals to open a criminal case.	On 12/08/2019 the Leninskiy District Court in Krasnodar disallowed the complaint against the refusal to open a criminal case stating that a criminal case against the applicant was pending at that same court. On 13/08/2019 the Leninskiy District Court in Krasnodar examined a criminal case against the applicant and refused to request documents relating to the inquiry into the allegations of his ill-treatment, ruling that he could initiate criminal proceedings against the officers	Convicted of organising an unauthorised public event and failing to comply with lawful demands of police officer. No further detail provided.	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – sentenced to administrative detention of 5 days, on 29/01/2021, by the Krasnodar Regional Court; Art. 5 (1) - unlawful deprivation of liberty - on 22/01/2021 the applicant was arrested and escorted to the police station - no reasons why the record of	16,000

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					09/09/2018; owing to their position (except the knees and elbows), they could not have been caused by falling.		allegedly involved in the incident.		administrative offence could not be compiled on the spot; no exceptional circumstances justifying the applicant's arrest; forced attendance without evidence of proper summons to appear or of failure by the applicant to comply without a valid excuse (see *Rozhkov v. Russia (no. 2)*, no. 38898/04, §§ 91-96, 31 January 2017). Complaint raised on appeal; Art. 3 - inadequate conditions of detention during transport - van, in a "glass" compartment, 5 episodes of transfer between 23/09/2018 and 28/09/2018; lack of	

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									space, lack of fresh air, no or restricted access to toilet, no or restricted access to potable water, lack of or insufficient natural light, inadequate temperature; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - The applicant attended a manifestation in support of A. Navalnyy on 23/01/2021 in Krasnodar. He was convicted under article 20.2 § 2 of the CAO and sentenced to administrative detention of five days, the final appeal decision was taken by the	

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									Krasnodar Regional Court on 29/01/2021.	
2.	3194/20 28/12/2019	**Danil Valeryevich BOLSHAKOV** 1992	Sholokhov Igor Nikolayevich Kazan	On 05/05/2018 the applicant participated in a demonstration in Krasnoyarsk against the results of the Russian presidential elections. Officers of police department no. 10 in Krasnoyarsk beat the applicant on his body and face during his arrest.	Medical examination act no. 31165/18 of 05/05/2018 by Krasnoyarsk hospital no. 7: abrasion on the left side of the back. Medical examination act no. 873 of 08/05/2018 by the Karpovich hospital of Krasnoyarsk: head injury, concussion.	On 16/05/2018 complaint to the Krasnoyarsk investigative committee. Several refusals to open a criminal case for the lack of corpus delicti, the first on 15/06/2018 and the last on 23/07/2019.	On 24/07/2019 the Zheleznodorozhniy District Court in Krasnoyarsk rejected the applicant's complaint contesting the refusal of 24/10/2018. On 03/10/2019 the Krasnoyarsk Regional Court upheld it on appeal.	The applicant was convicted under article 20.2 § 5 of CAO for participating in an unauthorised demonstration and sentenced to 35 hours of community service.		16,000
3.	21305/20 28/04/2020	**Aleksandr Andreyevich KOSTYUK** 2002	Kamalova Raushaniya Rustemovna Kazan	On 03/08/2019 the applicant, a minor at the time, participated in the manifestation for fair elections to Moscow Duma, during which police officers hit him on the head and beat him with the rubber truncheons on the ribs, head and legs. At 4.32 p.m. he was brought to police station "Obruchevskoye" in	Discharge notes of 06/08/2019 from medical file no. 8935-2019 by the Emergency Paediatric Surgery and Traumatology Institute in Moscow: brain concussion, bruises, abrasions of the head, neck, left shoulder.	On 06/08/2019 complaint by the applicant's mother to the Tverskoy District Investigative Committee. On 07/08/2019 refusal to open a criminal case.	On 30/08/2019 the Tverskoy District Court in Moscow examined the appeal contesting the refusal and dismissed it as unsubstantiated. On 18/11/2019 the Moscow City Court upheld that decision on appeal.	On 04/12/2019 the Commission for Delinquent Minors found the applicant guilty of participation in authorised manifestation under Art. 20.2(5) of the CAO and fined him RUB 10,000.		16,000

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				Moscow, where he complained of headache. The ambulance was called only upon arrival of his representative at 5.25 p.m.						
4.	21809/20 28/04/2020	**Andrey Vitalyevich KURGIN** 1981	Fayzullina Diana Rashitovna Kazan	At 3.30 p.m. on 03/08/2019 the applicant participated in the manifestation for fair elections to Moscow Duma. During the event the police beat him with rubber truncheons, punched and kicked him. The applicant was not detained.	Medical certificate of 04/08/2019 by the Moscow City Clinic no. 15: multiple bruises, abrasions on both arms, bruises on the right thigh.	On 06/08/2019 complaint to the Tverskoy District Investigative Department. On 07/08/2019 a letter by the head of the department informing the applicant of the refusal to register the complaint as no indication of criminal actions by the police officers had been detected - the use of force against the applicant was justified.	On 02/09/2019 the Tverskoy District Court in Moscow dismissed the appeal against the authorities' inaction for the lack of the subject-matter: the applicant's complaint had not been registered by the law-enforcement authorities and no decision refusing to open a criminal case had been taken. On 11/11/2019 the Moscow City Court upheld that decision on appeal.	The applicant was not charged with any offence.		16,000
5.	23911/20 15/06/2020	**Aleksandr Vladiimirovich SVIDERSKIY** 1979	Vanslova Yekaterina Nizhniy Novgorod	On 03/08/2019 the applicant participated in the manifestation for fair elections to	Medical record no. 13423 of 05/08/2019 by the 1st unit of Moscow City	On 21/08/2019 complaint to the head of the Russia Investigative	On 17/09/2019 the Basmanniy District Court in Moscow dismissed the appeal	The applicant was convicted under Article 20.2 § 5 of the CAO and	Art. 11 (2) - disproportionate measures against organisers and	16,000

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				Moscow Duma. During his apprehension at the event the police officers beat him to the torso and extremities. At 4.30 p.m. the applicant was brought to the "Kuntsevo" police station and released at 10.30 p.m. on the same date.	Clinic no. 115: contusions, bruises in the chest area on the left, lumbar area on the left, abrasion of the knee joint.	Committee. On 21/08/2019 refusal to register the complaint as no indication of criminal actions by the police officers had been detected- the use of force against the applicant was justified. On 27/09/2019 complaint to the Internal Investigations' unit of the Moscow Police Department. On 27/09/2019 refusal to carry out an inquiry into the allegations.	against the 21/08/2019 refusal to register the complaint on the grounds of the lack of the subject-matter: the applicant's complaint had not been registered by the law-enforcement authorities and no decision refusing to open a criminal case had been taken. On 24/12/2019 the Moscow City Court upheld that decision on appeal. On 09/10/2019 the Presnenskiy District Court in Moscow dismissed the applicant's appeal against the 27/09/2019 refusal to carry out an inquiry. On 16/12/2019 the Moscow City Court upheld that decision on appeal.	sentenced to the payment of an administrative fine of RUB 20,000.	participants of public assemblies - "Dopuskay" manifestation on 03/08/2019. Conviction under Article 20.2 (5) of the CAO, administrative fine of RUB 20,000. Final - Moscow City Court, 26/09/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision on 26/09/2019, by the Moscow City Court; Art. 5 (1) - unlawful detention - Applicant taken to the police station as an administrative suspect on 03/08/2019: no evidence/assessment	

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									that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	
6.	23914/20 15/06/2020	**Mikhail Alekseyevich FAYTO** 1990	Vanslova Yekaterina Nizhniy Novgorod	On 03/08/2019 the applicant participated in the manifestation for fair elections to Moscow Duma. During his apprehension at the event the police officers hit him on his lower back and handcuffed him. At 4.20 p.m. he was taken	Medical examination no. 908639562 on 04/08/2019 by the Puchkov Ambulance Station in Moscow: contusion of the chest on the right, contusion of the left shoulder and forearm, abrasion of the soft tissues of the face on the left, damage to the	On 16/08/2019 complaint to the Internal Investigations Department of the Moscow Police / refusals to open a criminal case on 06/09/2019 and 20/09/2019. On 21/08/2019 complaint to the Head	On 04/10/2019 the Presnenskiy District Court in Moscow dismissed the applicant's appeal against the 20/09/2019 refusal to open a criminal case/On 16/12/2019 the Moscow City Court upheld that decision on appeal.	The applicant was convicted under Article 20.2 § 5 of the CAO for participation in unauthorised demonstration and sentenced to the payment of an administrative fine of RUB 15,000.		16,000

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				to the "Pechatniki" police station, where he complained in vain about the injuries. The ambulance was called only upon arrival of the applicant's representative at about 1 p.m. on 04/08/2019.	ligaments of the finger of the left hand. Medical record of an outpatient patient no. 14874 of 05/08/2019: multiple abrasions of the face, torso and limbs, damage to the ligaments of the finger.	of the Russia Investigative Committee. On the same date refusal to register the complaint.	On 17/09/2019 the Basmanniy District Court in Moscow examined and dismissed the appeal against the refusal to register the complaint of 21/08/2019 finding that "it did not have legal consequences for the applicant". On 24/12/2019 the Moscow City Court upheld that decision on appeal.			
7.	31751/20 24/07/2020	**Dmitriy Aleksandrovich BATURO** 1992	Vanslova Yekaterina Nizhniy Novgorod	On 06/10/2018 the applicant participated in manifestation "Protest of unlimited duration" in Moscow, during which two police officers twisted his arms, kicked him and dragged him to the police bus to be taken to the Tverskoy district police station. While in the bus, another officer kicked the applicant in the	Ambulance checklist of 06/10/2018 by the Puchkov Emergency Care Station: the patient's condition necessitates hospitalisation. Extract from the medical file no. 36352-18 of 12/10/2018 by the Sklifosovskiy Institute of Emergency Care in Moscow: hospitalised	On 25/10/2018 the applicant complained to the Tverskoy district investigative committee and the Moscow police. On 04/12/2018 the head of the Internal Investigations unit of the Moscow police concluded that the two police officers had not used physical force against the applicant. On 04/03/2019 the	On 26/04/2019 the applicant contested the letter of 04/03/2019 to the Tverskoy District Court alleging the authority's failure to open an inquiry into the ill-treatment. On 15/05/2019 the court dismissed it on the grounds of the lack of the subject-matter: no procedural decision refusing to open a criminal case had been			16,000

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				chest. At 9 p.m. an ambulance was called to the police station, and it took the applicant to a hospital.	from 06/10/2018 to 12/10/2018, acute pancreatitis and hematoma of the left shoulder which could have occurred as result of a traumatic impact. Ultrasound of abdomen of 13/10/2018 by private clinic "First Doctor": indications of increase in the size of the liver, gallbladder and spleen. Forensic examination of the applicant on 06/11/2018 at the Private Institute of Forensic Science in Moscow: dull trauma of the abdomen with possible rupture and microdamage to the pancreas as a result of the traumatic impact on 06/10/2018.	Tverskoy district investigative committee informed the applicant by a letter that his allegations had been verified without carrying out an inquiry and no violations were established.	taken. On 05/08/2019 the Moscow City Court overruled that decision on appeal and sent the case for a fresh examination. On 14/11/2019 the Tverskoy District Court examined the complaint anew and found that the ill-treatment allegations had been duly examined by the police and that there were no grounds to open an inquiry. On 17/02/2020 the Moscow City Court upheld that decision on appeal.			
8.	40094/20 06/08/2020	**Andrey Nikolayevich KOCHENOV** 1957	Toreyeva Svetlana Anatolyevna Moscow	On 05/05/2018 the applicant participated in manifestation "He is not the Tsar to us", during which he was	Medical certificate from the Sklifosovskiy Institute of Emergency Care of 05/05/2018: injuries to the soft	On 05/05/2018 complaint to the Tverskoy district police department, then on 24/07/2018	On 07/02/2020 the Tverskoy District Court in Moscow examined the applicant's complaint	No charges were brought against the applicant.		16,000

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				punched in the face and beaten to the head by six Cossacks (para-military troupes who officially assisted the police) with the acquiescence of the surrounding police officers.	tissues of the head and the face.	complaint to the Moscow Prosecutor. Letter informing about a refusal to open a criminal case of 14/09/2018. Neither copy of that decision nor information about the body which had taken it was provided.	about the failure of the Tverskoy district police department to investigate his ill-treatment and rejected it as unsubstantiated. On 27/04/2020 the Moscow City Court upheld the decision on appeal.			
9.	54165/20 08/12/2020	**Alik Mikhaylovich SHARAPOV** 1958	Khusyainova Margarita Ravilevna Nizhniy Novgorod	The applicant was arrested on 03/08/2019 at a manifestation in Moscow, during which he was punched, kicked and hit unconscious with a truncheon by police officers. He was then carried to a police bus and taken to the Novogireyevo district police station. According to the Novogireyevo police records, officers D.B. and V.D. acknowledged the use of physical force against the applicant	Ambulance record of the applicant's examination at the Novogireyevo district police station of Moscow on 03/08/2019: bruise on the left forearm. Medical certificate of Moscow hospital no. 13 of 04/08/2019: contusion to the left elbow. Medical certificates of 09/09/2019, 30/09/2019, 04/10/2019, 21/10/2019, 29/10/2019: left ulnar nerve damage	On 03/08/2019 complaint about the police violence to the Novogireyevo police. On 08/10/2019 - complaint to the Moscow Investigative Committee. On 11/10/2019 the applicant was informed that his complaint was a speculation and therefore its registration had been refused.	On 06/07/2020 Moscow City Court rejected the applicant's complaint contesting the authorities' failure to investigate his ill-treatment (the applicant's allegations of police brutality did not call for an inquiry; the investigating authority acted lawfully).			16,000

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				as he had allegedly refused to go to the police bus. According to the applicant, before and during his arrest he offered no resistance.	(neuropathy). Expert forensic medical examination of 12/03/2020: blunt trauma of the left elbow with ulnar nerve damage could have been caused at the time and in the circumstances alleged by the applicant - hit with a truncheon or kicked by police officers on 03/08/2019.					
10.	317/21 16/12/2020	**Aleksandr Sergeyevich GLUSHAK** 1984	Crew Against Torture Nizhniy Nogorod	On 27/07/2019 the applicant took part in a manifestation for fair elections to Moscow Duma during which a police officer hit him on the torso and used a stun gun against him. Then he was taken to a police station and released on 29/07/2019.	Medical certificate of 29/07/2019 by Moscow City Hospital No. 2: bruises and abrasions on the chest. Forensic examination act no. 47Д-19 of 07/08/2019 by the Moscow Forensic Bureau: crusts from abrasions or burns that could have been caused by objects with traumatic surface, up to seven-fifteen days prior the examination.	On 21/08/2019 the applicant complained to the Moscow Investigative Committee. On 10/09/2019 his complaint was transferred to the Central Police Department in Moscow. No reply followed.	On 19/02/2020 the applicant appealed to the Presnenskiy District Court in Moscow against the police inaction on his ill-treatment complaint. On 19/02/2020 the court refused to examine the complaint for the lack of subject-matter as the applicant had allegedly failed to explain what exactly the investigator had	No conviction.		16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					Forensic examination act no. 102/2020 of 05/06/2020 by the same bureau (the expert examined the applicant's t-shirt: round-shaped defect caused by the thermal effect of a stun gun).		not done. On 17/06/2020 the Moscow City Court quashed that decision on appeal, it examined the complaint and dismissed it as unsubstantiated.			
11.	7410/21 05/01/2021	**Matvey Aleksandrovich ZASLAVSKIY** 1980	Bayturina Svetlana Nikolayevna Moscow	The applicant was arrested on 27/07/2019 in Moscow during manifestation for fair elections to Moscow Duma by officers of the Moscow Directorate of the Russian Guards Service. The officers put his arms behind his back, brought him down to his knees and dragged him in that position to the police car.	Extract from the applicant's medical card of 28/07/2019 by Moscow City Hospital no. 52: bruise on the left elbow, abrasions on the head and both knees.	On 18/11/2019 complaint to the Moscow investigative committee; no reply was given to the applicant as the complaint had been transmitted to the Russian Guards Service for internal investigation; no further information followed.	The applicant appealed against the failure of the investigative committee to take steps to investigate his ill-treatment to the Moscow Directorate of the Russian Guards Service. On 26/05/2020 it rejected his complaint. On 08/07/2020 the Moscow City Court upheld that decision.			16,000
12.	9648/21 24/01/2021	**Darya Alekseyevna SOSNOVSKAYA** 1993	Molokanova Tatyana Valeryevna Moscow	On 10/08/2019 the applicant participated in demonstration for fair elections to Moscow Duma, during	Medical certificate of 11/08/2019 by the Moscow Town Clinic no. 219: injury of the	On 12/08/2019 complaint to the Tverskoy district investigative committee. On	On 16/10/2019 the applicant complained to the Basmanniy District Court in Moscow about the			16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				which she was punched in the stomach by a policeman and hit on the head with a baton by another. After that she was taken to the Taganskiy district police station, where she was detained until 11/08/2019.	soft tissue of the head to the right. Excerpt from medical file no. 2019-49262 of 12/08/2019 by the Town Clinical Hospital no. 7: closed craniocerebral trauma, brain concussion and injury of the soft tissue of the head.	19/09/2019 the head of the Basmanniy district investigative committee, where the complaint had been transferred, informed the applicant by a letter that the complaint had been forwarded to the Russian Guards Service for internal investigation. No further information followed.	authorities' failure to open an inquiry into her ill-treatment. On 23/06/2020 the court examined the complaint and found it unsubstantiated. On 29/07/2020 the Moscow City Court upheld that decision on appeal.			

[1] Plus any tax that may be chargeable to the applicants.